

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
RASHARD BARNES,

Plaintiff,

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER FNU SHENG,
SHIELD # 935734 and POLICE OFFICER FNU SINGH,
SHIELD #958074,**

Defendants.
-----X

To the above named Defendant(s):

Index No.:

Date Filed:

**Plaintiff designates
Queens County as the
Place For trial.**

**The basis of venue is
Place of Occurrence**

SUMMONS

**Plaintiff resides at
107-19 Supthin Blvd
Jamaica, NY 11432**

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff(s) Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is completed if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

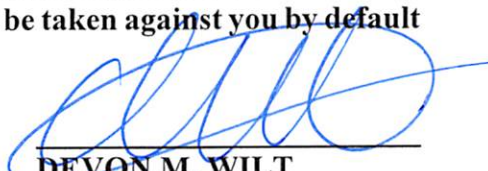
**DATED: New York, New York
January 23, 2017**

Defendant(s)' Address:

**CITY OF NEW YORK
100 Church Street
New York, New York 10007**

**NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, NY NY 10038**

**P.O. FNU SINGH (#958074)
C/O NYPD, 1 Police Plaza, NY NY 10038**


**DEVON M. WILT
Attorney for Plaintiff
160 Broadway – 4th Fl
New York, New York 10038
(212) 406 – 9200**

**P.O. FNU SHENG (#935734)
C/O NYPD, 1 Police Plaza, NY NY 10038**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RASHARD BARNES,

Plaintiff,

-against-

Index No.:
Date Filed:

COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER FNU SHENG,
SHIELD #935734 and POLICE OFFICER FNU SINGH,
SHIELD#958074,

Defendant(s)
-----X

Plaintiff, by DEVON M. WILT, his attorney, complaining of the defendants, respectfully
alleges upon information and belief, as follows:

1. That at all the times herein mentioned, plaintiff **RASHARD BARNES (BARNES)**
was a resident of the County of Queens, City and State of New York.

2. That at all the times herein mentioned, defendant **CITY OF NEW YORK (CITY)**
was and still is a domestic municipal corporation duly organized and existing under and by virtue
of the laws of the City and State of New York.

3. That at all the times herein mentioned, defendant **NEW YORK CITY POLICE
DEPARTMENT (NYPD)**, was and still is a municipal agency duly organized and existing under
and by virtue of the laws of the City and State of New York.

4. Defendants **CITY** and **NYPD** employed defendant **POLICE OFFICER FNU
SHENG, SHIELD #935734 (P.O. SHENG)**.

5. Defendants **CITY** and **NYPD** employed defendant **POLICE OFFICER FNU
SINGH, SHIELD #958074 (P.O. SINGH)**.

6. At all times herein mentioned, defendants, **P.O. SHENG** and **P.O. SINGH**, were employed by the defendants **CITY** and **NYPD**, in the capacity of police officers, and were acting in such capacity as the agents, officers, servants and employees of the defendants, **CITY** and **NYPD**.

7. At all the times herein mentioned, defendants, **P.O. SHENG** and **P.O. SINGH**, were acting under color of state law and under their authority as police officers for the defendants, **CITY** and **NYPD**.

8. At all times herein mentioned, defendants, **P.O. SHENG** and **P.O. SINGH**, were assigned by the defendants **CITY** and **NYPD**, to the Transit Division District 20.

CONDITION PRECEDENT

9. The plaintiff duly and timely served a statutory Notice of Claim upon the defendants, **CITY** and **NYPD**.

10. The plaintiff has complied with all the conditions precedent to the institution of this action and has complied with all the provisions of the charter of the City of New York in relation thereto and in particular have duly presented his claims herein to the Comptroller and Corporation Counsel of the City of New York for adjustment, and that more than thirty (30) days have elapsed since the presentation of the Notice Of Claim and that said claim remains unadjusted and the Comptroller of the City of New York has failed and refused to make any adjustment or payment of the same and the plaintiff, prior to the commencement of this action and within ninety (90) days after the injuries hereinafter described were received, duly served his Notice of Claim, and that fifteen (15) months have not elapsed since the accrual of this cause of action against the defendants.

FACTS

11. On October 27, 2015, at or about 7:40 A.M., the plaintiff arrived at the Sutphin Blvd and Archer Avenue Transit Station in Queens County.

12. Plaintiff approached the Transit Station Ticket Agent JOHN DOE 1 (Agent JD1).

13. Plaintiff told Agent JD1 that he had misplaced his fare and asked Agent JD1 if he would allow him entry on to the platform.

14. Agent JD1 allowed Plaintiff entry through the Emergency Gate onto the platform.

15. Plaintiff walked through the Emergency Gate.

16. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, approached Plaintiff and forcibly stopped him.

17. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, did not show any form of identification or arrest warrant to the plaintiff.

18. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, did not have either probable cause or a warrant to stop plaintiff.

19. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, questioned Plaintiff as to his destination.

20. Plaintiff replied that he was on his way to a gym.

21. Defendant **P.O. SINGH** grabbed Plaintiff, forcibly turned Plaintiff's body to face the Emergency Gate and pushed him towards the Emergency Gate.

22. Plaintiff's body came in contact with the Emergency Gate.

23. Defendant **P.O. SINGH** grabbed Plaintiff's left arm, pulled it behind Plaintiff's back and forced Plaintiff down on to one knee.

24. Plaintiff's right hand slammed onto the ground to break his fall.

25. Plaintiff cried out in pain from his right hand and left knee hitting the floor.
26. Defendant **P.O. SHENG** approached the right side of Plaintiff's and stepped down onto plaintiff's right hand.
27. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, assaulted Plaintiff.
28. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, arrested plaintiff.
29. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, searched plaintiff's person and did not find contraband.
30. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, drove plaintiff to the 103rd Precinct located at 168-02 91st Avenue in the County of Queens.
31. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, never informed plaintiff why he was being arrested.
32. At the 103rd Precinct, plaintiff was photographed, fingerprinted and processed.
33. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, knew that they did not have just or probable cause to arrest the plaintiff.
34. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, intentionally detained the plaintiff without cause.
35. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, intentionally assaulted the plaintiff without cause.
36. Plaintiff was placed in a holding cell at the 103rd Precinct.
37. Plaintiff requested medical attention for his right hand ring finger, right wrist, left knee and headaches.

38. Plaintiff's requests for medical attention were ignored.

39. On or about October 27, 2015, during the evening hours, plaintiff was arraigned in the Criminal Court of the City of New York, County of Queens, on Complaint Docket No.: 2015QN053752.

40. The Complaint charged the plaintiff with the following crimes:

Assault in the Second Degree (Two (2) Counts)

Assault in the Third Degree

Theft of Services

Resisting Arrest

41. On January 14, 2016, Plaintiff plead guilty to Resisting Arrest in the Criminal Court of the City of New York, County of Queens.

FIRST CAUSE OF ACTION
(FALSE ARREST AND IMPRISONMENT)

42. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered "1" through "41" herein, as if the same were set forth herein more fully and at length.

43. The arrest and imprisonment of plaintiff were unwarranted and unjustified under the circumstances then and there existing and was caused solely and wholly by the negligence, carelessness and recklessness of the defendants, **CITY** and **NYPD**, their agents, servants, officers and employees, specifically defendants **P.O. SHENG** and **P.O. SINGH**, and was without any fault or want of care on the part of the plaintiff.

44. The acts complained of were done by the defendants **CITY** and **NYPD**, their officers, agents, servants and employees, specifically defendants **P.O. SHENG** and **P.O. SINGH**, in the course of their employment and was without cause or provocation; the defendants were

further careless and negligent in the manner and method in which they performed their duties; in that defendants **P.O. SHENG** and **P.O. SINGH** acted without cause in arresting, assaulting and imprisoning the plaintiff; in that defendants **P.O. SHENG** and **P.O. SINGH** covered-up their actions and refused to give aid and medical treatment to the plaintiff; in that defendants **P.O. SHENG** and **P.O. SINGH** falsely arrested and imprisoned plaintiff knowing that they had no just or probable cause to do so; in that defendants **P.O. SHENG** and **P.O. SINGH** falsely swore to a Criminal Court Complaint charging plaintiff with *Assault In The Second Degree* and other related charges when they knew that plaintiff had not committed such crimes; in that defendants **P.O. SHENG** and **P.O. SINGH** acted indiscriminately and in total disregard of the life, limb or safety of the plaintiff; and defendants **P.O. SHENG** and **P.O. SINGH** failed to exercise due care, caution and prudence in the performance of their duties.

45. That by engaging in the foregoing acts, defendants **P.O. SHENG** and **P.O. SINGH** committed under color of state law and under their authority as police officers for the defendants, **CITY** and **NYPD**, and while acting in the scope of their employment and pursuant to authority vested in them by the defendants, **CITY** and **NYPD**, denied and deprived plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and in fact did so deny and deprive plaintiff of his rights, privileges and immunities.

46. That solely as a result of the negligence, carelessness and recklessness of the defendants **CITY** and **NYPD**, their agents, servants, officers and employees, specifically defendants **P.O. SHENG** and **P.O. SINGH**, as aforesaid, the plaintiff suffered displaced fracture of the right 4th proximal phalanx without intraarticular extension; corrective hand surgery to right

hand fracture; injury to right wrist; injury to left knee; hair pulled out from scalp resulting in migraine headaches; body aches and pain; humiliation, embarrassment and damage to his character and reputation; the plaintiff was held up to scorn and ridicule; the plaintiff was falsely arrested, assaulted, imprisoned and detained against his will; the plaintiff was caused to appear in the Criminal Court of the City of New York County of Queens; he was unable to attend to his usual duties; and he has been psychologically damaged by this occurrence.

47. That by reason of the foregoing, plaintiff has suffered substantial damages.

48. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION
(ASSAULT)

49. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “41” herein, as if the same were set forth herein more fully and at length.

50. The defendants, **CITY** and **NYPD**, their agents, servants, officers and employees, specifically defendants **P.O. SHENG** and **P.O. SINGH**, violated the plaintiff’s civil rights as guaranteed to him by the Constitution of the United States of America and the State of New York by unlawfully arresting, assaulting and imprisoning the plaintiff.

51. That by reason of the foregoing, plaintiff has suffered substantial damages.

52. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION
(NEGLIGENCE - FAILURE TO TRAIN AND SUPERVISE)

53. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered "1" through "41" herein, as if the same were set forth herein more fully and at length.

54. The defendants, **CITY** and **NYPD**, by their deliberate acts, gross negligence and reckless conduct failed to adequately train, discipline and supervise defendants **P.O. SHENG** and **P.O. SINGH**, and in their failure to promulgate and put into effect appropriate rules and regulations applicable to the duties, conduct, activities and behavior of their officers, agents, servants and employees, directly caused the harm suffered by plaintiff.

55. The acts of defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, committed under color of state law, deprived the plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

56. That by reason of the foregoing, the plaintiff has suffered substantial damages.

57. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION
(MALICIOUS PROSECUTION)

58. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered "1" through "41" herein, as if the same were set forth herein more fully and at length.

59. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, arrested the plaintiff for crimes which they knew or had reason to know the plaintiff had not committed.

60. Defendants, **P.O. SHENG** and **P.O. SINGH**, jointly and severally, falsely sworn to a Criminal Complaint charging the plaintiff with *Assault In The Second Degree* and other related charges when they knew that plaintiff had not committed such crimes.

61. Defendants **P.O. SHENG** and **P.O. SINGH**, jointly and severally, initiated and continued the criminal prosecution against the plaintiff for improper purposes.

62. The Criminal Complaint against plaintiff was resolved by plaintiff pleading guilty to Resisting Arrest.

63. That defendants, **CITY** and **NYPD**, by their deliberate acts, gross negligence and reckless conduct in failing to adequately train, discipline and supervise defendants **P.O. SHENG** and **P.O. SINGH** and in their failure to promulgate and put into effect appropriate rules and regulations applicable to the duties, conduct, activities and behavior of their agents, servants and employees, directly caused the harm suffered by plaintiff.

64. That the acts of defendants **P.O. SHENG** and **P.O. SINGH**, jointly and severally, committed under color of state law, deprived the plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

65. That by reason of the foregoing, the plaintiff has suffered substantial damages.

66. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff **RASHARD BARNES**, demands judgment against the defendants, jointly and severally, as follows:

- A. As to the first cause of action: In favor of the plaintiff against defendants, jointly and severally, together with the costs and disbursements of this action.
- B. As to the second cause of action: In favor of the plaintiff against defendants, jointly and severally, together with the costs and disbursements of this action.
- C. As to the third cause of action: In favor of the plaintiff against defendants, jointly and severally, together with the costs and disbursements of this action.
- D. As to the fourth cause of action: In favor of the plaintiff against defendants, jointly and severally, together with the costs and disbursements of this action.
- E. And for such other and further relief as may be just and proper.



DEVON M. WILT, ESQ.
Attorney for Plaintiff
160 Broadway -4th Floor
New York, New York 10038
(212) 406 - 9200

Index No.: Year 2017 RJI No.:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Hon:

RASHARD BARNES,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER FNU SHENG,
SHIELD #935734 and POLICE OFFICER FNU
SINGH, SHIELD #958074,

Defendant(s)

SUMMONS AND COMPLAINT

DEVON M. WILT

Attorney for Plaintiff

Office & Post Office Address, Telephone

160 Broadway – 4th Floor

NEW YORK, N.Y. 10038

(212) 406-9200

To:

Signature (Rule 130-1.1-a)

Print name beneath

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated, _____

Attorney(s) for

Please take notice

† NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within names court on

† NOTICE OF SETTLEMENT

that an order of which the within is a true copy will be presented for settlement to the HON.
one of the judges of the within names court, at _____ on

To:

Attorney(s) for:

Yours, etc.

DEVON M. WILT

Attorney for Plaintiff

Office & Post Office Address

160 Broadway – 4th Floor

NEW YORK, NY 10038